

United States Bankruptcy Court

Southern District of Florida

www.flsb.uscourts.gov

Joseph Falzone
Clerk of Court



Clerk's Procedural Manual

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MESSAGE

FROM THE CLERK OF COURT

The United States Bankruptcy Court for the Southern District of Florida welcomes you to this Clerk's Procedural Manual. It incorporates important information obtained from many authoritative sources, including this court's Local Rules, Local Forms, and local filing protocols. Additionally, this publication references other resources that are available on the Court's website. Consider this a detailed supplement to our website content; updates to both will ensure they remain effective tools for all court practitioners and stakeholders. Please consider bookmarking our website for ease of reference, visit: www.flsb.uscourts.gov. Attorneys who practice before this court are encouraged to share this information with members of their staff.

Every effort has been made to provide meaningful answers to anticipated questions, highlight details necessary to understand local case management efficiencies, and provide insight into how the clerk's office ensures accurate and efficient case progression. We acknowledge that the future of bankruptcy practice is evolving rapidly, and this manual aims to be a part of that dynamic future.

Anyone proceeding in this Court should thoroughly review:

1. The United States Bankruptcy Code,
2. The Federal Rules of Bankruptcy Procedure,
3. The Federal Rules of Civil Procedure,
4. The Local Rules of this Court,
5. The Local Rules of the United States District Court for the Southern District of Florida,
6. The Federal Rules of Appellate Procedure,
7. The Local Rules of the Eleventh Circuit Court of Appeals.

Court Communications: Please note that the Clerk's Office continuously updates its list of all registered user email addresses. We often communicate via broadcast messages sent by GovDelivery, an email service that enables efficient outreach to our audience. Accordingly, users of CM/ECF must maintain an accurate email address in their PACER credentials so that our broadcast messages are received.

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PART ONE - PROCEDURES MANUAL **SUPPLEMENTING LOCAL RULES OF BANKRUPTCY** **PROCEDURE**

General Information – Clerk’s Office and Court

Please visit the court’s website for additional information, including the web pages for pro se parties (for those not represented by an attorney), web pages for attorneys, and access to each judge’s homepages, www.flsb.uscourts.gov

Clerk’s Office Locations, Judicial Assignment, Where to File, and Virtual Clinics

The United States Bankruptcy Court for the Southern District of Florida consists of three divisions: Miami, Fort Lauderdale, and West Palm Beach. The cities and counties served by each division are specified on the court’s website. Only cases with proper venue will be accepted for filing in the Southern District of Florida.

Locations	Main Phone Numbers	Public Hours
C. Clyde Atkins US Courthouse 301 N. Miami Ave., Room 150 Miami, Florida 33128	(305) 714-1800	8:30 a.m. – 4:00 p.m.
US Courthouse 299 E. Broward Blvd., Room 112 Fort Lauderdale, Florida 33301	(954) 769-5700	8:30 a.m. – 4:00 p.m.
Flagler Waterview Building 1515 N. Flagler Dr., Suite 801 West Palm Beach, Florida 33401	(561) 514-4100	8:30 a.m. – 4:00 p.m.

Judges are assigned to cases automatically by the court’s Case Management/Electronic Case Filing (CM/ECF) system. Each case number includes the judge’s initials, which corresponds to the division in which the judge is located (e.g., 25-12345-SMG).

FREE VIRTUAL BANKRUPTCY CLINICS – Before filing a bankruptcy petition, ALL pro se individuals are encouraged to attend, via Zoom, a virtual bankruptcy clinic (the schedule is posted on the Court's website at: <https://www.flsb.uscourts.gov/node/231>). Each clinic features an overview of issues and procedures related to bankruptcy filings, followed by an interactive question-and-answer session staffed by one or more volunteer pro bono attorneys. These attorneys **DO NOT** represent you and **CANNOT** provide you with legal advice regarding your circumstances.

This is a **free service, and the attorneys are not there to solicit you as a client or to ask you to pay** for advice or future services.

Helpful Contact Information

- PACER (Register for e-filing credentials): www.pacer.gov, (800) 676-6856
- McVCIS (Multi-Court Voice Case Information System: (866) 222-8029 (English and Spanish)
- US District Court:
 - Miami Main, (305) 523-5100
 - Miami Intake, (305) 523-5200
 - Miami Appeals, (305) 523-5080
 - Miami Attorney Admissions, (305) 523-5080
 - Fort Lauderdale Main, (954) 769-5400
 - West Palm Beach Main, (561) 803-3400
 - Office of the US Trustee, (305) 536-7285

Building Entrance Requirements

- Photo Identification is required, as everyone must pass through building security.
- Attorneys, including *pro hac vice* attorneys, must also present a valid bar registration to bring electronic communication devices into federal courthouse facilities.
- The public may NOT bring cellphones, cameras, recording devices, or other electronic devices into federal courthouse facilities.
- The Court may grant permission to bring an electronic device; the party must present a signed and entered order to the US Marshal's Service. No other exceptions are permitted.

Case and Records Information

Multi-Court Voice Case Information System (McVCIS)

The electronic voice system provides callers with basic case information for

bankruptcy cases, including case number, filing date, chapter, attorney name and telephone number, assigned judge and trustee, status of the case, 341 meeting date, and discharge and closing date, if applicable. McVCIS is available 24 hours a day, seven days a week, and can be accessed by calling (866) 222-8029 from any touch-tone telephone. Court records may be searched by name, case number, tax identification number or social security number.

Public Access to Court Electronic Records (PACER)

Access to Bankruptcy Court records is available 24 hours a day, seven days a week through PACER. PACER enables fee-based queries of electronic case summaries, docket information, and non-restricted images of public documents using any computing device. Users may:

- search by party name or case number
- track case updates
- obtain the public case docket
- obtain a copy of any public document
- perform general case research

Obtaining a PACER account allows users to access case information from all U.S. Appellate, District, and Bankruptcy Courts nationwide. A PACER subscription is free, but costs are associated with querying court records and documents. To register, contact the PACER Service Center at P.O. Box 780549, San Antonio, TX 78278, call (800) 676-6856, or for detailed information, including fees and billing, click <https://pacer.uscourts.gov/find-case>.

The Clerk of Court may exempt certain persons from payment of the PACER user access fee. Examples include indigents, bankruptcy case trustees, pro bono attorneys, pro bono alternative dispute resolution neutrals, Section 501(c)(3) not-for-profit organizations, and individual researchers associated with educational institutions. The Clerk of Court will not exempt local, state, or federal government agencies, members of the media, privately retained attorneys, or others who can pay for services. Requests for exemption must be made by writing to the Clerk of Court and providing detailed support and justification for the Clerk of Court to make an immediate determination. If approved, an order will indicate the terms of use and conditions.

Case Management/Electronic Case Filing (CM/ECF) User Profiles

Attorneys must be admitted to practice with the U.S. District Court for the Southern District of Florida and are required to file all documents using CM/ECF. A “creditor” Limited Filer credential may be authorized for an attorney who is *not* registered for practice in this district, as well as for creditors to electronically file specific types of documents. A Filing Agent credential may be authorized for an employee of a law firm to e-file on behalf of a registered attorney (the attorney

must set up this user profile in CM/ECF, as well as set the Filing Agent's permission to pay incurred filing fees). Unrepresented debtors do not qualify for electronic filing access.

Electronic Bankruptcy Noticing (EBN)

The Court encourages non-electronic filers to use the Electronic Bankruptcy Noticing (EBN) service. EBN is a free service that enables the electronic transmission of court notices, thereby delivering notices faster and with greater convenience. The advantages of EBN include the following.

- Court notices are sent the same day that the clerk produces them.
- Users can access notices 24 hours a day, 7 days a week.
- Court notices that would be mailed to multiple locations can be routed to a centralized electronic address.
- Debtors' attorneys will receive the Meeting of Creditors and specific new case deficiency notices electronically. Parties not registered for electronic notice will receive these documents nonelectronically.
- Storing notices electronically eliminates the potential for losing paper copies.
- Court notices can easily be forwarded to clients.
- For more information and to register for EBN, go to <https://bankruptcynotices.uscourts.gov/overview>.

Debtor Electronic Bankruptcy Noticing (DeBN)

The Court encourages debtors to sign up for electronic service for all court notices and orders served by the clerk. Debtors and joint debtors can register by filing the local form "Debtor's Request to Receive Notices Electronically under DeBN Program" and submitting photo identification to ensure authorization. This service enables more timely receipt of critical data, such as time-sensitive deadlines and pertinent case information. Learn more from the Don't Have a Lawyer? or Programs & Services sections of the court's website at: <https://www.flsb.uscourts.gov/debtor-electronic-bankruptcy-noticing-debn>.

Public Terminals

The Clerk's Office provides public computer terminals for free PACER access during normal business hours. Printing from these terminals is available for a fee.

Internet Website

The Clerk's Office web address is www.flsb.uscourts.gov.

Archived Case Files

The Court maintains closed case files for approximately one year after the closing date of a case, or as long as storage space is available. All nonelectronic case files are then shipped to the National Archives. The National Archives and Records Administration (NARA) case closing accession data is available in CM/ECF. Archived files are retained or destroyed pursuant to NARA's retention schedule. If the clerk's office is to retrieve a file, an Archives Request Form (LF-88) and applicable fees must be paid in advance at the time a request is submitted. It will take approximately 7 to 10 days for the Court to receive the file from the Archive Center. See "[Clerk's Instructions for Obtaining Copies of Court Records](#)."

General Filing Requirements

Location for Filing

Nonelectronic filed documents are to be submitted to the division in which the presiding judge is located during regular public hours. Attorneys are required to file all documents electronically. Documents are not accepted by email or facsimile transmission.

Documents Filed by Unrepresented Parties

Unrepresented debtors must nonelectronically file documents by mail or in person and affix a wet signature and date. A letter or document addressed to the court may be construed as a motion, response, objection, or any other document. Add a title and clearly state the action requested.

In the event of a public emergency, such as district-wide closure due to inclement weather or to assure public safety, the clerk's office may announce an alternative filing method for unrepresented parties. Should this become necessary, the court website will be updated with these filing protocols.

Photo Identification and Related Document Requirements

Unrepresented parties may file documents in-person at the clerk's office during regular business hours or by mail.

- When filing a petition in-person, the debtor and joint debtor must present original, valid, government-issued photo identification along with the document(s) being filed.
 - If a petition is presented by a non-filing person, both the debtor(s) AND non-filing person's original, valid, government-issued photo identification are required. Also, the non-filing person must present a legible power of attorney or other fully executed legal document

containing notarized signatures that provides legal authority to perform filing or signatory services on behalf of the debtor(s).

- When filing a petition by mail, a clearly legible copy of the debtor and joint debtor's valid, government-issued photo identification is required.
- A court-appointed guardian must include a copy of an order of appointment or other fully executed legal document, as well as their own original, valid, government-issued photo identification.
- All photo identifications will be entered into the record and will be restricted from public view.
- Failure to provide required photo identification, as well as an executed legal document that provides legal authority to perform filing or signatory services, may result in refusal by the clerk pursuant to LR1002-1(b)(3).

Signature Requirements for Acceptance and PACER Credentials

A signature on a legal document constitutes a binding sworn statement, making a filing action enforceable.

- **Signature Acceptance:** All petitions that initiate a new case are signed under a penalty of perjury. An electronically filed document has the same force and effect of a wet signature. **Electronically filed documents may be filed only by the practitioner whose PACER credential matches the signature block of the filed document, and wet signatures are required for nonelectronically filed documents.** The clerk's office may reject any petition, pleading, or document that fails to contain required signatures. In some instances, nonconforming papers may be stricken from the court record, or if filed in a closed or dismissed case, be returned without filing.
- **Format and PACER Credential:**
Local Rule 5005-2 specifies signature requirements for our district. The PACER credential facilitates an electronic appearance for noticing purposes. Without exception, PACER credentials may not be shared, as each practitioner must obtain his or her own credentials to electronically submit documents.

Bankruptcy Rules, Forms, and Format of Pleadings

The Bankruptcy Code, Bankruptcy Rules, and the local rules, administrative orders, court guidelines, and clerk's instructions of this court, set forth the requirements for filing bankruptcy petitions, complaints, and other proceedings and documents. Unless the court orders otherwise, the current versions of national and local forms must be used without alteration.

Links to all Official Bankruptcy Forms (e.g., petitions, schedules, statements, and other case-related forms), Administrative Office of the United States Courts

Director's Procedural Forms, and this court's local rules, administrative orders, local forms, clerk's instructions and court guidelines are available on the court's website at www.flsb.uscourts.gov.

Exhibit Requirements

All exhibits, including any proposed order, must be filed in CM/ECF as an attachment in the same-numbered docket entry (answer Yes to the prompt in CM/ECF to upload attachments). No proposed order may be uploaded as a stand-alone docket entry. Evidentiary Exhibits have specific protocols: See "[Instructions for Uploading and Filing Evidentiary Exhibits for Trial](#)." Contact the judge's courtroom deputy for specific instructions on how to identify and submit non-standard items, such as video exhibits or large-scale materials that cannot be rescaled into a standard-sized PDF image. For these, a party may be directed to identify the item on the exhibit register and provide a flash drive or provide a link to a file-sharing service.

Voluntary Petitions – Required Forms, Petition Preparers, and Legal Advice

Bankruptcy Rule 9009 states that forms prescribed by the Judicial Conference must be used without alteration to the content. The public may access these forms, and corresponding filing instructions, at the United States Courts website (<https://www.uscourts.gov/forms-rules/forms/bankruptcy-forms>) and at this court's [local website](#).

- **Link to INDIVIDUAL filing instructions, including a list of documents to be filed:** <https://www.uscourts.gov/sites/default/files/2025-04/instructions-individuals-2025-04v2-instructions.pdf>.
- **Link to NON-INDIVIDUAL filing instructions, including a list of documents to be filed:** <https://www.uscourts.gov/sites/default/files/2025-04/instructions-non-individuals-2025-04v2-instructions.pdf>.
- Refer to [11 U.S.C. Code §521](#) to determine a debtor's duties.
- An individual and a corporation, trust or partnership cannot file in the same petition; separate petitions must be filed. A corporation, trust or partnership must be represented by an attorney.
- Parties obtaining or purchasing forms from non-governmental sites must ensure that they use the current version of every form.
- 11 U.S.C. §110 addresses penalties for persons who negligently or fraudulently prepare bankruptcy petitions. A bankruptcy petition preparer must fully disclose his or her identity on prescribed forms and may not offer any legal advice to any party.
- The staff of judges and the clerk's office are not permitted to offer any assistance with preparing petitions or other documents, nor provide legal advice.

Creditor Matrix and other Service Requirements

Pursuant to Bankruptcy Rule 1007, the debtor **must** file with the petition a list containing the name and address of each entity included or to be included on Schedules D, E/F, G, and H of the Official Forms. The matrix must be filed in the format prescribed by “[Clerk’s Instructions for Preparing, Submitting and Obtaining Service Matrices](#).”

- A creditor matrix will be used as part of the master mailing list for the Court to send notices to parties in the case. Any entity filing a Notice of Appearance, request for notice, or Proof of Claim is automatically added to the master creditor list and will be mailed subsequent notices by the clerk.
- The creditor matrix must include names and addresses as they typically appear on the outside of an envelope. **DO NOT INCLUDE OTHER INFORMATION, SUCH AS AN ACCOUNT NUMBER OR PERSONAL IDENTIFIER.**
- A debtor’s failure to timely file a creditor matrix may result in dismissal of that case.
- Creditors added or modified *after* a petition has been initially filed will usually incur an additional fee.
 - **Local Form 4 “Debtor’s Notice of Compliance with Requirements for Amending Creditor Information” must be filed when post-petition creditors are added or modified.**
 - Accordingly, debtors are highly encouraged to file a complete creditor matrix with a Voluntary Petition even if schedules are to be filed at a later date.
 - Attorneys who fail to upload a creditor matrix with an initial electronically filed petition will bear the costs of serving the notice of the §341 meeting of creditors upon added creditors, as well as any Chapter 13 Plan when applicable, pursuant to the instructions in Local Form 4, “Debtor’s Notice of Compliance with Requirements for Amending Creditor Information.”
- The CM/ECF system provides a printable service list in multiple formats for use by any party in filing a Certificate of Service.
- If stay relief involves property that is the subject of an action pending in a Florida state court, serve the clerk of that court with the bankruptcy court’s granting order, and identify the state court case number in the mailing address of that recipient in the Certificate of Service.
- For purposes of service, parties are responsible for the accuracy of their creditors and service lists. *The following list is provided as a point of reference. Defer to your own correspondence with a party or the listed party’s own filed document (data may change at any time).*
 - ✓ Attorney General of the United States, 950 Pennsylvania Ave. NW, Washington DC 20530
 - ✓ Florida Department Education, 325 Gaines St., Tallahassee, Florida

32379-0400

- ✓ Florida Department of Revenue, 5050 W Tennessee St., Tallahassee, Florida 32399
- ✓ Internal Revenue Service (IRS) Centralized Insolvency Operation, P.O. Box 7346, Philadelphia, PA 19101-7346
- ✓ Office of the United States Attorney (Miami), 99 NE 4th St., Miami, Florida 33132
- ✓ Office of the United States Trustee (Miami), 51 SW First Ave. Suite 1204, Miami, Florida 33130
- ✓ Small Business Administration, 409 3rd St. SW, Washington DC 20416
- ✓ United States Marshal Service (Miami), 400 N. Miami Ave., Miami, Florida 33128

Third-Party Notice Providers – National Creditor Registration Service

Pursuant to Bankruptcy Rule 2002(g)(4) and 9001(b)(9), all third-party entities (e.g., claims/noticing agents) that enter into separate arrangements with creditors for delivery services comparable to those provided through the Bankruptcy Noticing Center program's National Creditor Registration Service (NCRS) are required to complete the Bankruptcy Notice Provider application found in the Forms section of <https://bankruptcynotices.uscourts.gov/>. The application serves as an entity's self-certification that it can comply with the AO's guidelines for third-party notice providers. The NCRS provides options for notice recipients to specify a preferred U.S. mail, e-mail address, or fax number to which bankruptcy notices should be sent.

Deadlines for Filing – Consequences of Noncompliance

Deadlines for filing various documents are specified in the Bankruptcy Code, Bankruptcy Rules, Local Rules, and Orders of this Court. The clerk's office has been granted authority to:

- Issue deficiency notices and paperless docket entries to enforce compliance with filing requirements (e.g., missing documents, incorrect or incomplete forms, CM/ECF docket event selection).
- Correct or modify the official court record to safeguard certain records, ensure accuracy, require online payment of omitted and required filing fees, and ensure compliance with automated case management functions and case progression.
- Enter a strike and/or case dispositive order due to omitted and required local or official form (e.g., failure to comply with or file Local Form 4 with post-petition schedules and statements).

Hearings

Both authoritative references and judicial scheduling govern the number of service days in a Notice of Hearing.

- Attorneys are encouraged to use the self-calendaring module of CM/ECF when available, which automatically enters a servable Notice of Hearing immediately following the entry of a related document.
- Alternatively, the clerk's office will enter a Notice of Hearing when applicable, or chambers may set a hearing by entry of an order.
- Movants are highly encouraged to review the court's website tab titled "Judges" for each judge's protocols **before** calling a Courtroom Deputy for scheduling assistance.
- Movants are cautioned against identifying "emergency hearing requested" in a motion for matters that are not genuine emergencies.

Obtaining a Transcript or Audio Recording of Court Proceedings

The clerk's office protocols for transcripts or audio recordings are identified on the court's [website](#) (Programs & Services > Obtaining Transcript or Audio Recording of Court Proceedings).

- All registered CM/ECF users with full filing privileges must file and pay for an audio recording by filing an electronic request directly in CM/ECF.
- All other filers must submit a Local Form 13 "Request for Audio Recording of Court Proceeding for Individuals Without CM/ECF Electronic Filing Access" to the clerk's office or to a dedicated email address (see form for details).
- A Local Form 5 "Transcript Request Form" must be submitted **ONLY** to a court-approved transcription service (see website for a list of vendors).
- Requests will not be accepted verbally or in the courtroom.
- Payment is required at the time of request.

Bankruptcy Fees & Methods of Payment

Payment of Filing Fees in Installments

Only individual debtors may apply to pay a petition filing fee in installments. Bankruptcy Form 103A "Application for Individuals to Pay the Filing Fee in Installments" must be submitted. The total of proposed payments must equate to the total filing fee AND reflect full payment within 120 days. Both debtors, if a joint petition is filed, must sign the application. If the proposed payment schedule is unsatisfactory, an order may deny the application or approve an adjustment to the proposed schedule.

If a prior case dismissal order reflects that outstanding fees remain owed from a prior

case and it restricts the clerk's acceptance of a later-filed case, the clerk's office will reject the new case pursuant to that order. The debtor(s) must pay prior fees owed as a qualification to apply for new case installment payments or the debtor(s) must pay the new case in full.

In Forma Pauperis – Eligibility for Fees Waived in Chapter 7 Cases

Individual debtors in chapter 7 cases who meet certain financial requirements may apply for a waiver of the petition filing fees.

Bankruptcy Form 103B "Application to Have the Chapter 7 Filing Fee Waived" must be submitted. An order will be entered that either grants the application, establishes an installment payment schedule, or sets a deadline for full payment of the filing fee. When an initial filing fee is waived, later filing fees within that case are also waived for the debtor(s) unless the Chapter 7 trustee moves for reconsideration and the judge grants the trustee's request.

Methods of Payment – Acceptable Form of Payment, Fees, Attorney Lockout

Acceptable Form of Payment from Non-Attorneys:

- Money order, a cashier's check, or an "official check" made payable to "Clerk, U.S. Courts."
- Debit card or ACH (Automated Clearing House) methods are accepted for in-person case or documents, as well as for remote payment when the clerk's office has provided a specific link.
- Personal or business checks, together with photo identification from the presenter, are accepted ONLY for the payment of copy, certification or research fees, and fees for court recordings.
- Personal and business checks, as well as 3rd party checks, are NOT accepted for any case/document filing fee.

Acceptable Form of Payment from Attorneys:

- CM/ECF Pay.gov payment module accepts credit, debit, and ACH payments.
- Attorney personal or firm checks, a money order, a cashier's check, or an "official check" made payable to "Clerk, U.S. Courts" for non-CM/ECF incurred fees.
- CM/ECF-incurred fees must be paid via Pay.gov from an attorney account by 2:00 a.m. on the day following an incurred fee. If it is not paid timely, the user's PACER credential will be placed in a lockout status, which is temporary suspension until outstanding fees are paid.

Cash is not accepted. All fees must be paid by filers when charges are incurred. Instances of unpaid fees or repetitious non-payment violations will

be addressed by the Clerk of Court or a designee and may result in revocation of electronic filing privileges or other judicial actions.

Bankruptcy Fee Schedule

This is available on the Court's [website](https://www.flsb.uscourts.gov/clerk's-instructions-and-court's-guidelines) at <https://www.flsb.uscourts.gov/clerk's-instructions-and-court's-guidelines>. The fee schedule includes all statutory filing fees, as well as the costs for services such as certifications and copying charges.

Filing Fees - Owed to the Court, Refunds

Generally, fees are fully earned upon filing, regardless of any outcome.

- In some instances, an order may contain a restriction on a party's ability to perform a current or future action pending compliance. For example, a debtor's case may be dismissed due to a failure to pay a filing fee in full. That unpaid amount remains due and may impact the debtor's ability to reinstate or refile until payment conditions are met.
- Refunds are not routinely approved. An order is required to receive any refund. For example, an attorney may have electronically filed a duplicate petition in error, which resulted in two case numbers issued for the same debtor. The erroneous fee must still be paid to avoid an e-filer's lockout of his or her PACER credential. The attorney may wish to file a two-part motion seeking to restrict public access to the erroneously filed case and to request a refund. The judge will rule on both parts of the motion.
- Payment of court fees exceeding the statutory fee may be accepted with approval from the payee or if it is received in the mail. No refunds will be made for overpayments of \$25 or less.

Rules Governing Practice

Local Rules, Administrative Orders, and General Orders

Local Rules, Administrative Orders, and General Orders govern practice in this court. All are posted on this court's website.

Virtual Hearing and Appearance Procedures (Telephonic and Video Conference)

Practitioners must review this court's local rules, local forms, and each [judge's webpage](#) learn about virtual appearance procedures. Virtual appearances are a privilege, not a right, and are discretionary. Contact the judge's Courtroom Deputy *only* after reviewing the judge's webpage.

- A party may only participate in a virtual appearance with Court

authorization. **A notice or order will contain details for advance registration. If permitted, parties must register on time.**

- Parties **must** put their telephones on “mute” except when they need to be heard.
- The Court may defer certain hearings to the end of the hearing calendar. All registered parties must be available for a virtual appearance at the scheduled hearing time without exception.
- The Court is not required to postpone any hearing because of a party’s unavailability or due to equipment failure. A stable, high-speed connection is required. It is the appearing party’s responsibility to reduce all potential for equipment malfunction or transmission interference. As such, the use of cellphones is discouraged.
- Virtual participation waives any right to appear in person.
- Evidentiary matters generally require in-person appearances.
- Recording proceedings from any location by any means is prohibited. The audio recording maintained by the Bankruptcy Court is the sole basis for creation of an official transcript and constitutes the official record of the proceeding.
- The formality of a courtroom must always be observed during a virtual appearance. For video appearances, counsel and witnesses must dress appropriately, exercise civility, and otherwise conduct themselves in a manner consistent with the dignity of the courtroom proceedings.

Attorney Admission to Practice

Practice Protocols and Pro Hac Vice Admission

All attorneys must be admitted to practice before the U.S. District Court for the Southern District of Florida unless Local Rule 9010-1 provides an exception. All partnerships, corporations and other business entities other than an individual conducting business as a sole proprietorship must be represented by an attorney who is admitted to practice before this court.

An attorney qualifying to appear pro hac vice must associate with local counsel, who will electronically file the required local form Motion to Appear Pro Hac Vice and submit a proposed local form Order Admitting Attorney Pro Hac Vice.

Attorneys must submit an electronic PACER request to this court to convert their “query” account to an e-filing credential – refer to **Electronic Filing Credential – All Users Access**. Upon approval of an electronic PACER request:

- The attorney must electronically file a document that appears on the public docket for the attorney to start receiving electronic notifications. *Approval of a credential by the clerk’s office does not create an electronic appearance in any case or proceeding. Rather, the attorney must e-file a document and*

be linked to their client to begin receiving electronic notifications.

- Filing fees are payable to the court at the time a fee-based document is electronically filed. All fees must be paid by plastic card payment from an account in the e-filer's name or firm. The clerk's office may invoke a filing fee for any improperly e-filed document. Any failure to timely remit a payment will result in suspension of a PACER credential until payment is received.
- The PACER account holder is responsible for all updates to an email address, physical mailing address, phone number, and name changes. Further, the attorney may authorize staff to register as their Filing Agent, which is an individual assigned all the rights and filing privileges of a registered attorney to file documents on the attorney's behalf. After a Filing Agent has their own approved PACER credential, the attorney assigns the Filing Agent's access and payment privileges within CM/ECF: Click Utilities > Maintain Your PACER Account > select Email Information and/or More User Information, and complete applicable data fields > the user will view a confirmation message after completion.
- Attorneys are responsible for verifying the identity of each client and ensuring that the client's signature and authorization are obtained before filing any document.

Notice of Meeting of Creditors – All Chapters

The clerk's office will serve notice of the Meeting of Creditors (aka, "case commencement notice") upon receipt of a Voluntary Petition *except* when the required creditor mailing list has not been filed. A case may be dismissed due to noncompliance with this filing requirement.

- For Chapter 7 cases, the docket will reflect non-service if there is no PDF image associated with the corresponding docket entry.
- For Chapter 13 cases, the clerk will serve the notice and Plan only when a creditor list AND Plan are concurrently filed with a Voluntary Petition. The attorney must serve an initial post-petition Plan if the clerk cannot do so, bear all noticing costs, and file a Certificate of Service.
 - Both notices will contain critical information, such as case number, judge, date of filing, applicable meeting/hearing dates/times, critical objection deadlines, proof of claim deadlines for asset cases, and for Chapter 13 cases, a confirmation hearing date. Further, both will specify the method(s) of attendance, as well as the trustee's name, address, and phone number. The clerk's office division is also specified.
- For Chapter 11 cases, the notice will indicate if the Voluntary Petition is filed pursuant to subchapter V, and if so, the assigned trustee's contact information.

Chapter 11 Protocols

Pre-Filing Coordination with Clerk of Court

Coordination with the Clerk of Court is necessary before filing any large Chapter 11 case. Please contact the Clerk of Court at (305) 714-1894. This is applicable for mega cases, as well as cases involving time-sensitive emergency motions (including motions for substantial consolidation or joint administration) or when specialized noticing by the clerk or claims agent is required. See Local Rule 1002-3.

United States Trustee's Role

The United States Trustee's role includes reviewing first-day motions, professional employment issues, committee formation, and other topics related to case commencement. The U.S. Trustee will also assign a staff attorney to each case as applicable. At the initial debtor interview, if not addressed in advance, the U.S. Trustee will review:

- the debtor's obligation to file monthly operating reports;
- the debtor's insurance needs;
- the U.S. Trustee's banking guidelines;
- the U.S. Trustee's Fee Guidelines; and
- the debtor's obligation to pay quarterly fees, if applicable.

First Day and Emergency Matters

The following is a non-inclusive list of first-day matters. Ensure that motions are filed with appropriate authoritative references.

- Motions for substantive consolidation or joint administration;
- Applications for employment of professionals, including attorneys, accountants, financial advisors, and other professionals (only where necessary to avoid immediate and irreparable harm);
- Motions for use of cash collateral;
- Motions for post-petition financing;
- Motions to pay critical vendors;
- Motions to pay pre-petition employee wage claims and benefits (only where necessary to avoid immediate and irreparable harm);
- Motions regarding the continuation of essential services, such as utilities or assurance payments;
- Motions to deviate from the United States Trustee's standard requirements (such as maintenance of existing bank accounts, existing business forms, cash management systems, investment procedures, etc.);
- Motions directing banks to honor pre-petition payments (only where necessary to avoid immediate and irreparable harm); and

- Motions to allow the debtor to pay certain pre-petition claims and honor certain pre-petition customer claims (refunds of deposits, warranties, etc.) (only where necessary to avoid immediate and irreparable harm).

Adversary Proceedings

Types of Actions

An adversary complaint, and cover sheet if filed nonelectronically, must be filed when a party is initiating any of the types of proceedings described in Bankruptcy Rule 7001.

Summons, Order Setting Schedule Conference, and Service Requirements

Upon review of a complaint initiating an adversary proceeding, the clerk's office will issue and serve upon the plaintiff or their attorney the summons and an order setting a scheduling conference. The complaint, summons, and order setting a scheduling conference must be served upon each defendant by the plaintiff or their attorney. The scheduling order establishes explicit procedures and deadlines, as well as specifies critical details regarding case requirements. Upon completion of service upon each defendant, as defined by Bankruptcy Rule 7004, a Certificate of Service must be filed with the clerk's office by the plaintiff(s). The most common service defects are that service is improperly specified or that service is not upon a named person on behalf of the non-individual defendant. Failure to properly serve may jeopardize the plaintiff's case.

Subpoenas

A party may compel production of documents or attendance of a witness at trial or at a deposition through use of a subpoena. Use of the Director's Procedural Forms is required.

Return of Exhibits Following Trial

In the event trial exhibits were provided to the Court, they may be returned to the party who submitted the exhibits after entry of an order concluding the matter for which the exhibits were submitted.

Payment of Funds into Court Registry (Interpleader Funds)

By administrative order, the Court has authorized that all funds deposited with the Court registry, will be maintained in an interest-bearing account in the Court Registry Investment System ("CRIS"), which the Administrative Office of the U.S.

Courts administers. Fees are assessed from interest earnings in the amount outlined in the Bankruptcy Court Miscellaneous Fee Schedule. Funds are deposited and withdrawn only upon court order.

Funds deposited with the clerk's office pursuant to 11 U.S.C. §362(l), as well as funds deposited pursuant to Bankruptcy Rule 3010 and 3011, will be deposited directly into the U.S. Treasury. Disbursement of these deposits requires an order from the court. The order must specify the principal amount and contain a statement to include any accrued interest.

Post-Judgment Collection Activities

Judgments entered in another federal district may be registered in this district prior to or at the time a writ of execution or judgment is sought and must be accompanied by a miscellaneous proceeding filing fee, a certified copy of the original judgment, and Director's Form B2650 "Certification of Judgment for Registration in Another District."

Claims

Chapter 7 Cases

In this district, the debtor's selections on the Voluntary Petition form will determine whether the case is opened as an asset or no-asset case. The notice of commencement will reflect the selection, and a Proof of Claim deadline will be established for asset cases. If the case is opened as a no-asset case and the trustee concludes that the estate has assets to enable a distribution to parties, the Court will send a separate notice to all parties of the deadline in which to file a Proof of Claim.

Chapters 11, 12, and 13 Cases

These cases are opened as asset cases, and the deadline for filing Proofs of Claim will be identified in the case commencement notice.

Claims filed by the Debtor or Trustee

The Clerk's Office will send notice regarding the Proof of Claim to the affected creditor, case trustee, debtor, and applicable debtor's attorney. This notice describes the amount and type of claim, (secured, unsecured, etc.), when it was filed, and by whom. It also states that a Proof of Claim filed by a creditor at any time will supersede the claim(s) filed by the debtor or trustee.

Notice of Change of Address vs. Transfer of Claim

A Notice of Change of Address may ONLY be filed for a party to change their own address. It may not be filed to transfer any claim, such as a claim originally filed by a third-party serving agent to a different third-party servicing agent, because a party may not unilaterally withdraw another party's appearance. A fee-based Transfer of Claim must be filed whenever *ownership* of a claim has changed.

Appeals

Notice of Appeal and Process

All notices of appeal filed in the Bankruptcy Court under Bankruptcy Rule 8003 and 8004 will be transmitted by the Bankruptcy Court clerk's office to District Court for docketing and the opening of a new civil case [See U.S. District Court Local Rule 87.4]. Within 14 days after filing the notice of appeal or entry of an order disposing of the last timely motion of a type specified in Bankruptcy Rule 8002(b) (whichever is later), or entry of an order by the District Court granting leave to appeal, the appellant must file with the Bankruptcy Court clerk's office a designation of the items to be included in the record on appeal and a statement of issues to be presented (Bankruptcy Rule 8009). **Failure to timely file this designation and statement of issues may result in dismissal of the appeal pursuant to this court's Local Rule 8009-1(A) and District Court's Local Rule 87.4(c).** The designation must include the title and docket number of each paper designated. Parties are cautioned to designate only relevant parts of the cause of action and NOT the entirety of a case or proceeding.

Within 14 days after the service of the designation and the statement of issues of the appellant the appellee may file and serve on the appellant a designation of additional items to be included in the record on appeal. If the appellee has filed a cross appeal, the appellee as cross appellant may file and serve a statement of issues to be presented on the cross appeal, and a designation of additional items to be included in the record. The appellee's designation must include the title and docket number of each additional item designated. Parties are cautioned to designate only relevant parts of the cause of action and NOT the entirety of a case or proceeding.

If transcripts of untranscribed proceedings are designated by a party, that party shall immediately, upon the filing of the designation, order the transcript(s) from the court reporter and make satisfactory arrangements for payment of its costs. All transcript orders must be made on Local Form 5, "Transcript Request Form." On receipt of a request for a transcript, the reporter shall complete the Reporter's Acknowledgment and file a copy with the clerk (Bankruptcy Rule 8010). [See also "Guidelines on Electronic Availability of Transcripts and Procedures for Transcript Redaction."]

If a document is placed under seal by the bankruptcy court, it may still be designated as part of the record on appeal. The party must identify the document without revealing confidential or secret information. The bankruptcy clerk will not transmit it to the clerk of court where the appeal is pending as part of the public record. In accordance with Bankruptcy Rule 8009(f) for Sealed Documents, the party must file a motion with the court where the appeal is pending to accept the document under seal. If the motion is granted, the movant must notify the bankruptcy court of the ruling, and then the bankruptcy clerk will promptly transmit the sealed document to the clerk of the court where the appeal is pending.

When the record is complete for purposes of the appeal, the bankruptcy clerk will promptly transmit the record to the clerk of the district court. Once the record has been transmitted to the district court, all subsequently filed documents relating to the appeal must be filed in the district court.

Regarding Motions for Leave to Appeal (Bankruptcy Rule 8004), the clerk will promptly transmit the motion and notice of appeal. The designation and statement of the issues should not be filed with the clerk of the bankruptcy court as required under Federal Bankruptcy Rule 8009, until entry of an order by the district court granting leave to appeal (Local Rule 8004-1).

PART TWO - CASE MANAGEMENT/ELECTRONIC CASE FILING (CM/ECF) ADMINISTRATIVE PROCEDURES

Overview

This manual supplements the Bankruptcy Court's local rules and forms, as well as resources appearing on this court's website. Practitioners need to review all these resources, as they intend to work in harmony.

Electronic Filing Credentials – All Users Access

Security

A PACER account is required to file and receive electronic notifications from the court's CM/ECF system. Security is a critical concern of the system, and practitioners must guard their PACER login and password carefully. PACER account holders are cautioned not to share their credentials; instead, their staff should establish their own PACER "Filing Agent" account.

The electronic filing credentials offered by this court are:

- Trustee/U.S. Trustee – Full filing access with additional function unique to their role (reference Local Form 94).
- Attorney – Admitted attorneys will receive full filing access (reference Local Form 95).
- Limited Filer – Non-Admitted Attorneys and creditors may file ONLY the following documents (reference Local Form 96):
 - Notices of Appearance, Changes of Address, Requests for Service of Notices, Proof(s) of Claim and other documents related to a Proof of Claim (not including responses to objections), notices provided pursuant to Local Rule 3002.1-1, Reaffirmation Agreements, Chapter 11 Ballots, and other papers as authorized by the court.
 - For employees of creditors, the credential will be initially modified to reflect the name of the company. The clerk's office rejects PACER updates that include account name changes; he or she will receive a rejection email from the clerk's office with instructions to "unlink" his or her PACER account from any former employer.
- Filing Agent – An employee may obtain their own PACER credential to electronically file on behalf of an Attorney or Trustee. The Attorney or Trustee must authorize the Filing Agent within CM/ECF and may set up an optional payment authorization for filing fees.

Registration Requirements (Local Form and PACER Account Maintenance)

The registration process for new users in the Southern District of Florida Bankruptcy Court is a two-part process. First, email Local Form 94, 95, or 96 to the address stated in the forms. Secondly, transmit an electronic registration from a user's PACER account (instructions are contained on the local forms). A public query PACER account converts to an e-filing credential upon approval by the clerk's office. Information contained in the local form and a user's PACER must match. A user experiencing issues with PACER's multi-factor authentication requirement must call PACER directly at 1-800-676-6856 or visit their website at www.pacer.gov.

The following are critical elements for maintaining a PACER credential:

- **Maintaining a Credential.** All account holder information must be continuously updated by a user on the PACER website. This includes changes to an email address, physical address, phone number, payment methods (credit and debit/ACH), managing secondary email addresses, other account identifiers, and managing Filing Agents.
- **Email Address(es).** Some functions, such as adding/editing a secondary email address, are performed directly in CM/ECF: [Click Utilities > Maintain Your ECF Account > Email Information > complete the data fields > click Return to Account Screen > click Submit](#). Participants are

- responsible for maintaining their own accounts.
- **Filing Agent Access.** Attorneys and trustees are encouraged to add Filing Agents to their credential: [Click Utilities > Maintain Your ECF Account > More User Information > go to “Filing agents” and use the “Find filing agent” field to search for a Filing Agent > click Return to Account Screen > click Submit.](#) Filing Agents and their permissions are controlled here as well.
 - **Passwords.** If an account holder has any reason to suspect that a password has been compromised, it is the account holder’s duty to immediately notify the Clerk of Court and to change the password.
 - **Withdrawal from the CM/ECF System.** Once registered, a participant must maintain a current and active e-mail address to receive e-mail notification from CM/ECF. A participant may withdraw from CM/ECF by providing the Clerk’s Office with written notice of such withdrawal and by updating their PACER account. Upon receipt, the clerk’s office will deactivate the participant’s credential.

***IMPORTANT:** The clerk’s office may deactivate a PACER credential for failure to respond to a clerk’s directive to correct noncompliance, for filing abuse, or for improper account usage. Importantly, terminating access to CM/ECF is NOT an authorization for the attorney to withdraw as the attorney of record for his or her client.*

- **Undeliverable Notice of Electronic Filing E-Mail (User’s E-Mail).** The clerk’s office monitors electronic notices returned to the Court as undeliverable. If repetitious electronic notices are returned to the Court because the e-mail address of the CM/ECF participant is not accurate, the clerk’s office may deactivate a credential.

Filing Documents

Mandatory Electronic Filing and Return of Nonelectronically Filed Documents

An entity represented by an attorney must file electronically. See Local Rule 5005-1 for electronic filing requirements, including limited exceptions.

Use of Dedicated CM/ECF Events and Filing Multi-Part Documents

Dedicated events within CM/ECF must be used to electronically file a corresponding document.

***IMPORTANT:** Use the “Search” feature in CM/ECF to query an event title using key words, then click the output’s hyperlink to file the document.*

The use of a dedicated CM/ECF event correlates to the payment of filing fees, eligibility for self-calendaring and negative notice, and sets internal case management flags, deadlines, and linkage. Further, incorrect selection adversely impacts the court calendar. The clerk's office may require a party to refile a noncompliant document, and when this is done, a refiled matter will not be backdated to the original date of submission.

IMPORTANT: CM/ECF is built with prompts that guide proper e-filing, and the activity is intuitive. Parties using third-party programs to electronically file bear the responsibility of ensuring that their program(s) are properly updated to mirror the court's system. Improperly filed documents may result in entry of a deficiency notice by the clerk, which may require a party to refile their document(s).

To file a multipart motion, which is a motion containing more than one cause of action, such as a "Motion for Relief from Stay and/or Motion for Adequate Protection," a user **must** select each event title in the same sequence as it appears in the title of the PDF image. *To do so, click the first event title, and then hold down the Ctrl key to select the second (or third) event title. All selections will be confirmed on your screen and in the final docket text.*

Filers are discouraged from combining a motion with a non-motion activity, such as a response or objection, in one PDF image. Specifically, motions appear in one CM/ECF e-filing category, and responses or objections appear in a different e-filing category. The matters should be filed separately to ensure proper linkage to a corresponding opposing party's action.

Creditor Matrix

The creditor matrix must be prepared and filed with a Voluntary Petition in accordance with the Clerk's Instructions for Preparing, Submitting and Obtaining Service Matrices. To be filed electronically, the creditor matrix (aka, List of Creditors or Creditor List) must be in ASCII DOS text format (.txt) and be named similarly to "creditor.txt." Alternatively, creditors may be added in CM/ECF individually. Commercial software programs are commonly configured to save files in this format.

IMPORTANT: All post-petition initial matrix filings require a filing fee (i.e., a case initially filed without the required creditor matrix). All post-petition modifications, amendments, or supplements to the original matrix must be filed concurrently with Local Form 4, "Debtor's Notice of Compliance with Requirements for Amending Creditor Information," and include the applicable filing fee.

System Requirements and PDF Document Limitations

All documents must be filed in Portable Document Format (PDF), except for the matrix as described above. Practitioners are advised to be aware of the following requirements:

- Each PDF must not exceed 50MB and have a physical size of 8.5 x 11 inches.
- Border margins must be 1 inch in all directions.
- Use portrait orientation (landscape documents must be scanned in portrait orientation).
- Most standard fonts are acceptable, but Times New Roman and Century Schoolbook are preferred.
- Convert, as opposed to scan, a document created from word processing software. Avoid using colors and most graphics, as they may adversely affect legibility. Some signature graphics have been known to make documents unreadable.
- Documents, regardless of creation method, should be text searchable (e.g., include Optical Character Recognition (OCR) metadata for text-searchable capabilities).
- Redact personal identifiers in compliance with Bankruptcy Rule 9037.
- Regarding security, remove password-protection, interactive elements, and multimedia (audio, video, links to external sites of the same).
- Flatten all interactive documents, especially this court's local form Chapter 13 plan. Suggestion: Use "Print to PDF" to convert an interactive document to create a new flattened image in which data fields cannot be changed.

Judge/Trustee Assignment Module

The Judge/Trustee Assignment module in CM/ECF efficiently adds the following information to each newly filed Chapter 7 case: Judge, Trustee, date and time of the Meeting of Creditors, meeting and applicable hearing locations (including virtual attendance methods), and critical case deadlines. For Chapters 12 and 13 cases, the judge and trustee are immediately assigned by CM/ECF. For Chapter 11 cases, the judge is immediately assigned by CM/ECF. For adversary proceedings, CM/ECF will assign the same judge from the related main case. Most electronic filers want this data as soon as possible, and commercially available software programs are set up to execute this function as part of their e-filing protocol. However, if an e-filer fails to perform this function, the CM/ECF system will do so automatically during off-peak hours.

Emergency Matters

Any party seeking to have a matter addressed on an emergency or expedited basis

must first file the document electronically and then contact the assigned judge's Courtroom Deputy to advise of the filing.

Exhibits

Exhibits to a motion or notice should be included in the main PDF image. Alternatively, exhibits may be uploaded within the same docket entry, but as a separate PDF (answer the prompt in CM/ECF during the document upload process). The benefit of including exhibits in the main PDF image is that it saves time and query costs for others who access documents via PACER.

Regarding exhibits submitted pursuant to Local Rule 9017-1, the local rule offers explicit guidance to both electronic filers and conventional filers. Reference the [Clerk's Instructions for Uploading and Filing Evidentiary Exhibits for Trial](#).

Effect of Electronic Filing

The docket entry in CM/ECF will generate an email to all recipients of electronic court records.

- **Entry on Docket.** The transmission is the Notice of Electronic Filing (NEF), which confirms the official court record pursuant to Bankruptcy Rule 5003. Electronic recipients may recreate it at any time by clicking on the silver bullet next to the docket entry number. The list of recipients is included in the silver bullet.
- **Official Record.** The official record in a case is the electronic record of the document as stored by the Court. The filing party is bound by the document as filed electronically through the CM/ECF system. A document filed electronically is deemed filed at the date and time stated in the Notice of Electronic Filing from the Court, which may be printed by any party at any time from PACER by selecting [Query > enter a case number > select "Notice of Bankruptcy Case Filing"](#) (PACER fees may apply). The document produced will bear a court seal, contain critical case identifiers, and it is accepted by most state courts as proof of the existence of a bankruptcy case (confirm with the intended jurisdiction, as some may require a certified document instead).

Certified and Exemplified Documents

These are available at posted costs and payment is required prior to completion of the work. Both are available from the clerk's office at the intake counter or by mail. The clerk will extract the requested items directly from the official court record. Clerks will not certify any customer-provided documents nor certify partial copies of any official document.

- **Certified Document.** A certified document is one in which the clerk's

- office affixes a court seal, as well as a confirmation of official reproduction.
- **Exemplified Documents.** An exemplification differs from a certified document in that it requires the signature and countersignature of the assigned judge and clerk of court. It may take additional time to complete.

Protecting Privacy for Filings

An order is required for approval to file documents under seal, and the motion must be filed in compliance with Local Rule 9018-1(b).

- **Documents Filed Under Seal.** The motion to seal may be sealed or be publicly available; prompts within CM/ECF will guide the user through the unique filing process. *Documents filed under seal cannot be viewed with any PACER credential, including the credential of the party that filed the sealed document.* Reference the [Clerk's Instructions for Filing Documents Under Seal](#) available on the court's website.
- **Restricted documents.** Specific docket events in CM/ECF, such as the Statement of Social Security Number, will restrict the public's ability to view a PDF image. It is critical that filers select the correct event title to ensure that confidential information remains private.
- **Redacted documents.** The content of any document must not disclose personal identifiers that are required to be redacted pursuant to Bankruptcy Rule 9037. An exception exists for documents in which CM/ECF automatically restricts content from public view, such as the Statement of Social Security Number.
- **Proposed Orders.** Proposed orders may be an exhibit to a corresponding document pursuant to local rule and must be uploaded via the E-Orders function in CM/ECF in due course. Proposed Orders may not be filed as a stand-alone docket entry.

Hyperlinks

Electronically filed documents may contain hyperlinks to other portions of the same document and/or to a public location on the internet that contains a source document for the citation. Practitioners are cautioned against using embedded links that do not support the legal position presented.

Documents Filed in Error

- **Self-Discovered.** A document incorrectly filed may result from uploading the wrong PDF image or selecting the wrong event title from the CM/ECF menu. When an error is self-discovered soon after filing, a Notice to Withdraw Document may be appropriate, immediately followed by a correctly filed document. If you are uncertain of what action to take, do not attempt to re-file the document without first reaching out to our Help Desk.

When calling to discuss the matter, please have the case number and document number available.

- **Clerk's Office Discovered.** Depending upon the correction, the clerk's office will either adjust the record or enter a deficiency notice. Examples of errors that require corrective action by the filer include the following: A dedicated CM/ECF event is required; a dedicated event requires a fee or other critical data element; the PDF image, docket event, or docket text is not in sync; and a PDF image is incorrect or incomplete. Parties are responsible for timely compliance with a clerk's office request for corrective action as no refiled document will be backdated.

CM/ECF Notice and Service of Documents

Notice of Electronic Filing – One Free Look

When documents are entered into the CM/ECF system, a Notice of Electronic Filing (NEF) will be transmitted to all registered users in the case. The NEF includes a link to view and save the document. The "One Free Look" expires immediately after the link is clicked or after 15 days without having been clicked (forwarded emails do not preserve the link for additional free looks).

- The Notice of Electronic Filing will indicate the time of filing, the name of the filing party, the name of the attorney, the type of document filed, and the text of the docket entry.
- It includes a list of parties who received the document electronically, as well as a list of *party filers* who did not receive it electronically (e.g., debtor and joint debtor, or a party who files documents nonelectronically).
- NEFs for restricted or sealed events will contain a link that does not display the filed document.
- Transcripts are temporarily restricted, and the document is not available to the public for at least 90 days.

Orders

Format and Manner of Submission

- Proposed orders must be prepared and submitted pursuant to the Guidelines for Preparing, Submitting, and Serving Orders (www.flsb.uscourts.gov/clerk's-instructions-and-court's-guidelines).
- The above Guidelines link has content divided into the following parts:
 - Contents and Formatting
 - Orders Prepared by the Court
 - Detailed Instructions for Specific Orders
 - Judgments, Submitting Orders

- Special Submissions, and
- Service of Orders.
- The clerk's office will enter all orders and judgments directly into CM/ECF. Recipients of electronic court records will receive a Notification of Electronic Filing (NEF) upon entry. Others will receive a paper copy served by the Bankruptcy Noticing Center (BNC) unless a party has signed up for bypass noticing from the BNC (EBN).
- Attorneys must timely upload their proposed orders via E-Orders in CM/ECF by selecting [Bankruptcy or Adversary > Order Upload](#).
 - Submit a proposed order immediately after the upload of a motion that requests relief without a hearing.
 - Submit a proposed order within seven calendar days from the expiration of the negative notice period.
 - Submit a proposed order or judgment within seven days of an oral ruling. An exception is provided in Local Rule 9021-2(a)(2).
 - Submit a proposed order on a Chapter 13 consent calendar within seven days after the hearing.
 - Submit a proposed order for continuances pursuant to instructions provided by the judge's chambers and Local Rule 9013-5(b).
- Use care when saving a filename of a proposed order, as the filename of an uploaded e-order will be publicly visible in the NEF.
- Only submit proposed orders to a chamber's email address when requested by chambers.
- If a party *resubmits* a proposed order pursuant to instructions from court staff, ensure that the resubmit is given priority.